

Dhanraj Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 23 November 2023 · 2023:AHC:222257-DB · WRIT - C No. 34157 of 2023 · **Final assessment quashed for want of personal hearing; fresh order directed.**

HEADNOTE

Final assessment dated 05.08.2023 quashed. The record did not show a personal hearing after the consumer's reply to the provisional assessment under clause 8.1 of the U.P. Electricity Supply Code, 2005. He is to appear before the Executive Engineer on 14.12.2023 and be heard, with a fresh final assessment within two months. Coercive action stayed for three months or until that decision, whichever is earlier.

FACTUAL SUMMARY

Dhanraj Singh challenged a final electricity assessment in the Allahabad High Court. He said that, contrary to the U.P. Electricity Supply Code, 2005, he had no opportunity to oppose the provisional assessment and was not personally heard after his reply of 21 February 2023. On 7 November 2023 the Court asked departmental counsel to explain an order of 5 August 2022 passed without clause 8.1. On 23 November 2023 the record still did not show a personal hearing.

REUSABLE CONSTRUCTIONS

1. Where the record does not show that a consumer was personally heard after replying to a provisional assessment, the final assessment is quashed and remitted for that hearing and a fresh final order. ¶ 1-3
2. On such a remand, coercive action is withheld until the fresh final assessment is made or until a short outer period fixed by the Court, whichever is earlier. ¶ 4

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005 — Clause 8.1

Personal hearing before final assessment

HOLDING

The order dated 05.08.2023 was quashed. The record did not show that, after the petitioner's reply of 21.02.2023, he had been given the opportunity to oppose the provisional assessment and a personal hearing. He shall appear before the Executive Engineer on 14.12.2023 with his records and be heard, and a fresh final assessment shall be passed within two months. For three months or until that decision, whichever is earlier, no coercive action shall be taken. ¶ 1-4

FLAG The 7.11.2023 order cites Clause 8.1 and an order dated 5.8.2022; the 23.11.2023 order quashes an order dated 05.08.2023 and does not specify a sub-clause. Neither the year nor any sub-clause is corrected.

PRINCIPLE TAGS

clause-8.1b-personal-hearing-mandatory-before-final-assessment The final assessment was quashed and the petitioner remitted to the Executive Engineer for a personal hearing after his reply of 21.02.2023, with a fresh final assessment to follow within two months. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE ASSESSMENT

Left to the Executive Engineer after the personal hearing on 14.12.2023, the fresh final order to be passed within two months. ¶ 3

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.